

Service of the Petition and Notice of the Hearing – Code of Civil Procedure § 1290.4

Code of Civil Procedure section 1290.4, the statute governing proper service of this motion states, in pertinent part:

“(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.”

At bar, Petitioners served Respondents by personal service. However, the text of the “Notice of Hearing on Annette Merriman and Fred Isaak’s Petition to Confirm Arbitration Award” is blank, and it is unclear if the caption page was filled out after service was made. See Notice of Hearing, dated 6/26/26. Thus, Petitioner does not demonstrate that the notice of hearing was properly made.

10. CU0002801 In the Matter of Irina Naduhovskaya

Appearance required by counsel for Petitioner to address the status of correcting the issues with the petition as described in the August 10, 2026 tentative ruling.